State vs Irfan @ Furkan on 4 February, 2026

IN THE COURT OF MS. SHIVANI CHAUHAN
ADDITIONAL SESSIONS JUDGE (FAST TRACK COURT-01)
SOUTH-EAST DISTRICT : SAKET COURTS : NEW DELHI

CNR NO. DLSE01-000817-2014
SC 1605/2016
STATE Vs. IRFAN @ Furkan
FIR No. 461/2013
PS Jaitpur
U/s 302/201/34 IPC & 174A Part II IPC

State Versus 1. Irfan @ Furkan
S/o Sh. Chhote Khan
Address as per charge-sheet :-
C-52, Gali No. 7, Kachi Colony,
Madanpur Khadar, New Delhi
Permanent address:-
B-216, Town & PS - Gajraula, Mohalla
Allipur, District - Muradabad, UP.

2. Rakesh
S/o Sh. Kunwar Pal
Address as per charge-sheet :-
B-12, Gali No. 19, Kachi Colony,
Madanpur Khadar, New Delhi
Permanent address:-
Village - Nangla Bhawani, PS - Soro,
District - Kasganj, UP.

3. Suraj @ Sajid (Proclaimed Offender)

S/o Sh. Rustam Ali
Address as per charge-sheet :-
B-12, Gali No. 19, Kachi Colony,
Madanpur Khadar, New Delhi
Permanent address:-
Village - Sukhlalganj, Mohalla -
Pashchimi, PS Barshthi, District - Jonpur,
UP.

Date of Institution	:	03.04.2014
Date of reserving for Judgment	:	Not reserved
Date of Judgment	:	04.02.2026
Final verdict	:	The accused Irfan @ Furkan and Rakesh are acquitted

JUDGMENT

Introduction:

> Information was received at Police Station on 10.12.2013 vide DD entry No. 21A at 02:57 PM about a dead body lying in the field of Shree Ram Chowk. Subsequent to the information, the dead body was found lying in the field. FIR was registered for offence u/s 302 IPC at PS Jaitpur and investigation commenced.

Brief facts:

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>
> 1. After completion of investigation, charge-sheet was filed naming Irfan @ Furkan, Rakesh and Suraj @ Sajid as accused persons. Cognizance was taken by Ld Predecessor. The copy of the charge-sheet was supplied to the accused in compliance of Section 207 Cr.PC. Matter was then fixed for consideration on point of charge.

2. Ld. Predecessor Court was pleased to frame Charges for offences U/s 302/201/34 IPC against all the three accused persons vide order dated 16.10.2014. Accused persons pleaded not guilty and claimed trial. Matter was listed for prosecution evidence.

3. During the trial, the accused Irfan @ Furkan was declared PO vide order dated 05.07.2017. He was re-arrested on 09.04.2024. Thereafter, on the basis of supplementary charge-sheet, Ld. Predecessor Court was pleased to frame additional Charge for offence u/s 174A Part II IPC against the accused vide order dated 09.04.2024. Accused pleaded not guilty and claimed trial. Matter was listed for prosecution evidence.

4. During the trial, the accused Suraj was declared proclaimed offender vide order dated 10.05.2023. Hence, the present judgment is only regarding the accused Irfan @ Furkan and Rakesh.

FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 3 of 72 Prosecution evidence:

5. Prosecution examined 32 witnesses in support of its case. After this, prosecution evidence was closed and matter was listed for examination of accused persons Under Section 313 Cr.P.C.

6. In his statement recorded under Section 313 CrPC, the accused Irfan @ Furkan denied all the allegation leveled by the prosecution. The accused had stated no phone was recovered from him by the police. His clothes were not seized by police. No phone was seized from him nor he had used the alleged phone and he had no relations whatsoever with Noor Fatima and he does not anything about alleged Nikahnama.

He did not confess any crime before Ld. Judicial Officer. Whatever he had stated before Ld. Judicial Officer has been stated by him at the instructions of the police officers who had beaten him and

forced him to say so. Accused had said so due to pressure of police officers. Police had even shown him to some persons in the police station. The police had planted the knife on him. The police had brought some old clothes and were putting some blood on them and they were telling the accused that they will use the same against him. The accused stated that he does not know the alleged FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 4 of 72 juice vendor / PW7. The accused did not have any vehicle. He never used the mobile number / mobile phone in question and he did not know any Gul Rukhsar. He stated that he is innocent and falsely implicated in the present case.

7. In his statement recorded under Section 313 CrPC, the accused Rakesh denied all the allegation leveled by the prosecution. The accused had stated that the police came at 1 AM at his house and he was taken by the police to PS and he was beaten and forced to say that he had committed the murder. He further stated that it had been 12 years and even on the date of his examination u/s 313 CrPC, he was bearing the marks of such injuries given by police. He stated that he had not given any disclosure statement to police. Police did not seize his mobile phone. He did not refuse to participate in TIP. His clothes were not seized. Om Prakash is his brother. However, he did not use to have any mobile phone. He stated that he is innocent and falsely implicated in the present case.

8. Later on, accused Irfan @ Furkan and Rakesh were again examined u/s 313 CrPC and their supplementary statement was recorded in which they both denied all the allegations and stated that the said purse was not produced at earlier occasion as the same FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 5 of 72 was not in the custody of MHC(M) and the same is planted even for the purpose of getting evidence against them.

9. Despite opportunity, accused persons chose not to produce any independent witness in their defence. Thus, the matter was fixed for final Arguments.

10. Final arguments have been heard. Record has been carefully perused.

11. Ld. Additional PP for the State has argued that the complainant has supported the case of prosecution on all material aspects of the case. He submits that the contradictions, if any, are trivial in nature and do not affect the merits of the case. He submits that prosecution has unable to prove its case beyond the pales of reasonable doubts and the accused be convicted of all the offences with which he is charged.

12. On the other hand, Ld. Defence Counsel argued that there are several contradictions in the testimonies of the prosecution witnesses. He submits that all the alleged recoveries had been planted upon the accused persons with a view to falsely implicate them. He further argued that prosecution has been unable to prove as to which mobile phone was used by or recovered from which accused. He further argued that the FSL result also does not prove FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 6 of 72 anything as no DNA examination was conducted. Ld. Counsel submits that accused persons are innocent and have been falsely implicated in the present case. He prays for acquittal of the accused persons.

Relevant Provisions of law:

13. Section 201 IPC provides - Causing disappearance of evidence of offence, or giving false information to screen offender-

> "Whoever, knowing or having reason to believe that an offence has been committed, causes any evidence of the commission of that offence to disappear, with the intention of screening the offender from legal punishment, or with that intention gives any information respecting the offence which he knows or believes to be false;
>
> If a capital offence -- shall, if the offence which he knows or believes to have been committed is punishable with death, be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine;
>
> If punishable with imprisonment for life -- and if the offence is punishable with imprisonment for life, or with imprisonment which may extend to ten years, shall be punished with FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 7 of 72 imprisonment of either description for a term which may extend to three years, and shall also be liable to fine;
>
> If punishable with less than ten years imprisonment -- and if the offence is punishable with imprisonment for any term not extending to ten years, shall be punished with imprisonment of the description provided for the offence, for a term which may extend to one- fourth part of the longest term of the imprisonment provided for the offence, or with fine, or with both."

14. Section 302 IPC provides - Punishment for murder-

> ""Punishment for murder --Whoever commits murder shall be punished with death, or imprisonment for life, and shall also be liable to fine".

15. Further the ingredients of murder are defined in Section 300 IPC. It provides :-

> "Except in the cases hereinafter excepted, culpable homicide is murder, if the act by which the death is caused is done with the intention of causing death, or- (secondly) - if it is done with the intention of causing such bodily injury as the offender knows to be likely to cause the death of the person to whom the harm is caused, or- (thirdly)- if it is done with the intention of causing bodily injury to any person and the bodily injury intended to be inflicted is sufficient in the ordinary course of nature to FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 8 of 72 cause death, or - (fourthly)- if the person committing the act knows that it is so imminently dangerous that it must, in all probability, cause death or such bodily injury as is likely to cause death, and commits such act without any excuse for incurring the risk of causing

> death or such injury as aforesaid."

16. Section 34 IPC provides -

> "When a criminal act is done by several persons in furtherance of the common intention of all, each of such persons is liable for that act in the same manner as if it were done by him alone."

17. Section 174A IPC - Non-appearance in response to a proclamation under section 82 of Act 2 of 1974 -

> "whoever fails to appear at the specified place and the specified time as required by a proclamation published under sub-section (1) of section 82 of the Code of Criminal Procedure, 1973 shall be punished with imprisonment for a term which may extend to three years or with fine or with both, and where a declaration has been made under sub-section (4) of that section pronouncing him as a proclaimed offender, he shall be punished with imprisonment for a term which may extend to seven years and shall also be liable to fine".

FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 9 of 72 Law related to circumstantial evidence:

18. In order to appreciate the recorded evidence, it is incumbent to discuss the law applicable to circumstantial evidence.

In Ram Avatar v. State 1985 Supp SCC 410 the Supreme Court explained that:

> "...circumstantial evidence must be complete and conclusive before an accused can be convicted thereon. This, however, does not mean that there is any particular or special method of proof of circumstantial evidence. We must, however, guard against the danger of not considering circumstantial evidence in its proper perspective, e.g., where there is a chain of circumstances linked up with one another, it is not possible for the court to truncate and break the chain of circumstances. In other words where a series of circumstances are dependent on one another they should be read as one integrated whole and not considered separately, otherwise the very concept of proof of circumstantial evidence would be defeated."

In State of Tamil Nadu v. Rajendran (1999) 8 SCC 679 the Supreme Court held:

> "...the law is fairly well settled that in a case of circumstantial evidence, the cumulative effect of all the circumstances proved, must be such as to negate the innocence of the accused and to bring home the charge beyond reasonable doubt. It has been held by a series of decisions of this Court that the circumstances proved must lead to no other inference except that of guilt of accused."

FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 10 of 72 In Trimukh Maroti Kalan v. State of Maharashtra (2006) 10 SCC 681, the Supreme Court held:

> "The normal principle in a case based on circumstantial evidence is that the circumstances from which an inference of guilt is sought to be drawn must be cogently and firmly established; that those circumstances should be of a definite tendency unerringly pointing towards the guilt of the accused; that the circumstances taken cumulatively should form a chain so complete that there is no escape from the conclusion that within all human probability the crime was committed by the accused and they should be incapable of explanation on any hypothesis other than that of the guilt of the accused and inconsistent with his innocence."

19. In Brajesh Mavi v. The State (2012) 7 SCC 45 the Supreme Court explained:

> "From the several decisions of this court available on the issue the said principles can be summed up by stating that not only the prosecution must prove and establish the incriminating circumstance(s) against the accused beyond all reasonable doubt but the said circumstance(s) must give rise to only one conclusion to the exclusion of all others, namely, that it is accused and nobody else who had committed the crime."

Evidence on record:

> Prosecution witnesses deposed as follows:-

20. PW - 1 HC Lokender was the DO in the police station FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 11 of 72 Jaitpur on 10.12.2013 who registered the present case FIR vide Ex.PW1/A and also made endorsement on the rukka vide Ex.PW1/B.

21. PW - 2 Sh. Nathu Lal has deposed as follows: -

> "As on the night intervening 09.12.13 and 10.12.13, I was residing in jhuggi on Pushta Road, Jaitpur. (The witness asks for water and is accordingly served water in court room). On the said night at about 09:30 pm to 09:45 pm I was present inside jhuggi. There were some quarrel about 15-20 steps away from my jhuggi. I alongwith my wife came out of our jhuggi and warned the persons who were quarreling that we would call police if they did not stop the quarrel. But those persons paid no heed. I again asked those persons not to quarrel and thereafter, those persons went away. After sometime, one boy came near my jhuggi and asked if I could lend him my torch as he had misplaced his keys. I gave my mobile phone to that boy since it had torch. With the help of the torch of my mobile phone, that boy searched for his keys. I do not know whether he found the keys or not but he returned my mobile and went away. I returned to my jhuggi. Since it was dark, I could not see the face of that boy who borrowed my mobile, so I cannot identify that boy today also. Police had recorded my statement but I do not remember the date of my statement. However, police recorded

my statement about 3 days after the quarrel.

(At this stage, Ld APP seeks to cross examine this witness on the grounds that he is resiling from his previous statement. Heard. Allowed.) FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 12 of 72 XXXXX by Sh. R.K. Gurjar, Addl. PP for the State.

It is incorrect to suggest that my statement was recorded by police on 10.12.13. It is incorrect to suggest that I had told the police that the area of Pushta road always remains well lit on certain spots. It is incorrect to suggest that I told the police that the boy who came to me with the request for torch was a well built boy. It is incorrect to suggest that when that boy came, my wife was also present with me. Vol. at that time my wife was inside the jhuggi. It is incorrect to suggest that I told the police that my wife told me that the said boy was one of those boys who were beating up one boy. It is incorrect to suggest that I told the police that I could identify the boy who had requested me for torch.

(At this stage Ld Addl. PP reads over the entire statement dated 10.12.13 under Section 161 Cr.P.C.of this witness which is marked as Mark A) I did not make any such statement to the police. It is incorrect to suggest that Mark A is my truthful statement to police and today I have deposed falsely as I have been won over by accused. It is incorrect to suggest that I am scared of the accused persons.

(The witness is asked to carefully see all the accused persons present in the court room) None of the persons present in the court room is that boy who had borrowed my torch.

(At this stage, at request of Ld Addl. PP, IO Insp. Ravinder Tomar is allowed to be called to the court room. From IO, Ld Addl. PP has verified as to who was that well built boy as per his investigation. IO has informed the Ld Addl. PP that accused Furkan was that boy. Ld Addl.

FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 13 of 72 PP has now specifically pointed towards accused Furkan, who is brought to the box) It is incorrect to suggest that the accused shown to me is the same boy who had borrowed my torch. It is incorrect to suggest that I have been won over by accused. It is incorrect to suggest that I had specifically seen that boy who came to borrow my torch but I have falsely stated today that I did not see him.

Q. If you did not see that boy who borrowed your torch on that night, then please tell as to how you can say that the accused shown to you is not the same boy.

Ans. Since I do not remember, I cannot say as to on what basis I said that the accused shown to me is not the same boy.

XXXX by Sh. Rashid Khan, counsel for accused Furkan.

Nil. (Opportunity Given) XXXX by Sh. Shivaji Shukla, DLSA counsel for accused Rakesh and Suraj.

Nil. (Opportunity Given)."

22. PW - 3 Ms. Jaswati has deposed as follows:-

> "As on the night intervening 09.12.13 and 10.12.13, I was residing in jhuggi on Pushta Road, Jaitpur. On the said night at about 09:30 pm to 09:45 pm I was present inside my jhuggi. There was some quarrel quite away from my jhuggi. I screamed at those persons who were quarreling and warned them that we would call police if they did not stop the quarrel. Thereafter, those persons went away. After sometime, one person came to our jhuggi. I did not notice the physical appearance of that person. However, that person was one of those persons who were quarreling. That person FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 14 of 72 requested me to lend him a torch as he had misplaced his keys. I told him that I did not have torch but my mobile phone had a torch in it. I gave my mobile to that person. After sometime that person returned my mobile and went away. I cannot tell as to how many persons were involved in that quarrel. I cannot identify those persons who were quarreling. I also cannot identify the person who borrowed my mobile. I do not know if police recorded my statement. After the said night, I never saw any of those persons who were quarreling. I did not see those persons even on 13.01.14.
>
> (At this stage, Ld APP seeks to cross examine this witness on the grounds that he is resiling from his previous statement. Heard. Allowed.) XXXXX by Sh. R.K. Gurjar, Addl. PP for the State.
>
> It is incorrect to suggest that my statement was recorded by police on 10.12.13.
>
> (At this stage Ld Addl. PP reads over the entire statement dated 10.12.13 under Section 161 Cr.P.C.of this witness which is marked as Mark B) I did not make any such statement to the police. It is incorrect to suggest that Mark B is my truthful statement to police and today I have deposed falsely as I have been won over by accused. It is incorrect to suggest that I am scared of the accused persons. It is incorrect to suggest that I had seen a number of persons beating up one person. It is incorrect to suggest that I had personally gone to those persons and warned them to call police. However, it is correct that after I threatened to call police, those persons took away with them the person who was being beaten up. It is incorrect to suggest that I had also seen two cars parked on FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 15 of 72 pushta road. It is incorrect to suggest that the person who had come to borrow my torch was well built and it is that well built boy to whom I gave my mobile. It is incorrect to suggest that I had told the police that I could identify the said well built person as well as his two accomplices who were beating up one person. It is incorrect to suggest that on 13.01.14 I had identified the said well built person and his two accomplices in Saket Court and on my identification of those

three persons, police recorded my statement.

(Ld Addl. PP reads over the entire supplementary statement under Section 161 Cr.P.C. dated 13.01.14 of this witness, marked Mark C) I did not make any such statement to the police. It is incorrect to suggest that Mark C is my truthful statement. It is incorrect to suggest that accused Irfan (pointed by the Ld Addl. PP) is the same well built person who had borrowed my mobile phone and the remaining two accused persons present in the court were his accomplices, whom I had seen on the spot when they were assaulting one person. It is incorrect to suggest that I have been won over by the accused persons and have deposed falsely. It is incorrect to suggest that on 13.01.14 I came to the court with my husband and identified the accused persons, who are today also present in the court.

XXXX by Sh. Rashid Khan, counsel for accused Furkan.

Nil. (Opportunity Given) XXXX by Sh. Shivaji Shukla, DLSA counsel for accused Rakesh and Suraj.

Nil. (Opportunity Given)"

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23. PW - 4 Sh. Rajesh Kumar / public witness/ who made call on 100 number from his mobile phone as he saw that lot of public had gathered near Pushta Road because the dead body was lying in the field.

24. PW - 5 SI Sanjay, In-charge, Mobile Crime Team has deposed that he along with his associates reached the place of occurrence and inspected the scene of crime and at his instructions Ct. Puneet (photographer) clicked the photographs of spot from different angles, however, no fingerprints could be lifted from the as it was a jungle. PW5 had lifted the bloodstained grass and soil from the spot and the bloodstained hair and handed-over the exhibits to the IO. He prepared his detailed report Ex.PW5/A.

25. PW - 6 Smt. Noor Fatama deposed as follows:-

"Deceased Nabi Mohd. was my husband. I have four children out of my wedding with Nabi Mohd. My husband Nabi Mohd. used to sale garments in car by parking the same on patri/ footpath. On 09.12.2013, my husband had gone to sale garments in car but did not return home. Earlier also on many times he did not come in the night, so I thought that he may have some engagements and will return. In the morning of 10.12.2013, accused Rakesh came to my place and parked our car and handed over the key of FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 17 of 72 the car along with the mobile phone of my husband Nabi Mohd. to me and on inquiry he told that Furkan @ Irfan had sent my husband somewhere. In the late evening of 10.12.2013, the police had brought accused Furkan to my place and the police had shown me the photograph as well as the purse of my husband so on the

strength of the clothes which my husband was bearing as well as on the strength of purse I identified the dead body of my husband in the photograph. On 11.12.2013, I had visited the mortuary of AIIMS Hospital where I identified the dead body of my husband. The police recorded the dead body identification statement which is on record is now Ex. PW6/A bearing my signatures at Point A. After the postmortem the dead body was handed over to us vide dead body handing over memo which is on record is now Ex. PW6/B bearing my signatures at Point A. On 11.12.2013, I had handed over to the police the photograph along with Nikah Agreement and affidavit of my marriage with accused Furkan which was taken into possession by the police vide memo now Ex. PW6/C bearing my signatures at Point A. The photograph is now exhibited as Ex. PW6/D bearing my signatures at Point A, the Nikah Agreement consisting of four pages is now exhibited as Ex. PW6/E bearing my signatures at Point A on each page and the affidavit of accused Furkan consisting of two pages is now exhibited as Ex. PW6/F and my affidavit now Ex. PW6/G, bearing my signatures at Point A. On 12.12.2013 itself, the police had brought the accused Furkan to my place and the accused Furkan got recovered our Maruti Car parked in front of our house and the police took into FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 18 of 72 possession the Maruti Car vide memo now exhibited as Ex. PW6/H bearing my signatures at Point A. I had also handed over the mobile phone my husband to the police which the police took into possession vide memo now exhibited as Ex. PW6/I bearing my signatures at Point A. All the three accused persons present in the Court today namely Furkan, Rakesh and Suraj told in the presence of the police that they have killed my husband Nabi Mohd.

At this stage, Ld. APP request to lead the witness on one point.

Heard. Allowed.

Q. Is it correct that in the morning of 10.12.2013, accused Furkan @ Irfan, Rakesh and Suraj had come to your place and parked the Maruti Car and handed over the key and mobile phone of your husband to you?

A. Only Rakesh had come to my place, parked the car and handed over the key and mobile of my husband to me.

Later on, the witness is dropped from the list of witnesses vide order dated 12.03.2023.

26. PW - 7 Mohd. Ishtiar @ Chote has deposed as follows:-

"I am a hawker by profession and sell juice at Nehru Place. On the intervening night of 9/10- 12-2013, at about 10:00PM, I was coming back to home from Nehru Place by a Pushta Road on my motorcycle. On Pushta Road, before Shiv Mandir I saw that accused Irfan Furkan who is known to me as he is resident of Kacha Colony, was

searching something. I asked as to what he was searching. He told me that he was searching the key of the vehicle. I helped him in searching the key by the light of my motorcycle, but the FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 19 of 72 key could not be found. It was too late, so I went home. The next morning I came to know that Irfan @ Furkan had killed somebody in the jungle of Khadar. The police inquired from me about this case and recorded my statement. Accused Irfan @ Furkan is present in the Court today and correctly identified by the witness. XXXXXX by Sh. Manoranjan Gaur, LAC for accused Suraj.

Nil. Opportunity given.

XXXXX by Sh. Jitender Tyagi, Counsel for accused Rakesh.

Nil. Opportunity given.

XXXXX by Sh. Rashid Khan, Counsel for accused Irfan @ Furkan.

I know accused Furkan for last about 7-8 months prior to this incident as he also used to come to the mechanic Riasat. The accused Furkan was searching the key on the corner of Pushta Road at about 10:00PM. I was coming alone. There is one Jhuggi near the place where he was searching the key. The said Jhuggiwala's including ladies were also present there. I had no conversation with the Jhuggiwala. I did not inquire as to which vehicle the key belongs to. I stopped there for about 5-7 minutes. It is wrong to suggest that accused Furkan @ Irfan did not meet as alleged by me or that I was not coming from Nehru Place to my house as alleged by me. My statement was recorded on the next day in the evening at about 10:00PM. It is wrong to suggest that I am deposing falsely."

27. PW - 8 Sh. Zahid Ali has deposed as follows:-

"On 11.12.2013, I along with Noor Fatarma had visited the mortuary of AIIMS Hospital where I FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 20 of 72 identified the dead body of Nabi Mohd. @ Pappu. After the postmortem the dead body was handed over to his wife vide dead body handing over memo already Ex. PW6/B bearing my signatures at Point B. The IO recorded my statement to this effect.

XXXXXX by Sh. Manoranjan Gaur, LAC for accused Suraj.

Nil. Opportunity given.

XXXXX by Sh. Jitender Tyagi, Counsel for accused Rakesh.

Nil. Opportunity given.

XXXXX by Sh. Rashid Khan, Counsel for accused Irfan @ Furkan.

Nil. Opportunity given."

28. PW - 9 Ex. SI Narender Kumar has deposed as follows:-

"On 10.12.2013, 1 was posted as SI at PS Jaitpur. On that day, I was on duty of bank security checking and patrolling in the area of PS Jaitpur. At around 3:00PM, I was handed DD No. 21A marked as Mark PW9/A by the duty officer for investigation. On receipt of said DD, I went to Yamuna Khadar where I found a dead body of a male person aged about 28-30 years. The head of the deceased was towards north side whereas the legs were towards south side. The face of the deceased was towards east side. The face of the deceased was disfigured. The neck bone was visible and there was no flesh on the neck. Deceased was wearing a blue jeans and white shirt and red colour sweater. He was wearing sports shoes with brown colour socks. There was white colour belt around the waist. Towards the head side, a brick with some hairs and blood stain marks was lying. Towards the FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 21 of 72 legs, a piece of bone was lying. Blood was scattered towards the side of legs of the deceased. Blood was also lying near the face of deceased. One button was also lying near the body of deceased.

At about 3:30-3:45PM, Inspector Ravinder Tomar along with other staff reached at the spot. At about 4:00PM, Crime Team also reached at the spot. The Crime Team clicked the photographs of the spot. Inspector Ravinder Tomar seized the different exhibits from the place of occurrence vide separate memos exhibited as Ex. PW9/A to Ex. PW9/C and all the memos are bearing my signatures at Point A. During search of body, one black colour purse was recovered from the backside pocket of the deceased. The said purse was found containing few visiting cards, bank slip, some passport size photographs and some other documents. From the shirt of the deceased Rs.730/- was recovered. The Crime Team officials prepared the report and handed over the same to the IO. The help of public persons was taken by the 10 to get identification of deceased, but nobody was able to identify him. Thereafter, IO prepared the rukka and handed over the same to Ct. Hawa Singh for registration of FIR at Police Station. The body of deceased was sent to AIIMS Mortuary through Ct. Brijpal. Thereafter, the police team returned at the PS and my statement was recorded by the IO. On 11.12.2013, I again joined investigation with Inspector Ravinder Tomar along with other staff. The police team left PS in search of suspect Irfan @Furkan. Accused met the police team at Samosa Chowk, Madanpur Khadar. He was apprehended and interrogated by the 10.

FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 22 of 72 Accused confessed his involvement in the present case. He was arrested in the present case vide arrest memo Ex. PW9/D and his personal search memo Ex. PW9/E was also prepared and both the memos bear my signatures at Point A. Accused also

handed over the mobile phone which was used in the crime by calling the deceased to Delhi. The said mobile phone was seized vide seizure memo Ex. PW9/F bearing my signatures at Point A. IO also recorded disclosure statement of accused Irfan vide Ex. PW9/G_ bearing my signatures at Point A. In the disclosure statement accused confessed that he had committed murder of deceased along with his associates namely Rakesh and Suraj. Thereafter, accused Irfan took the police team to his house No. B-12, Gali No. 19, Kachi Colony, Madanpur Khadar where both the accused namely Rakesh and Suraj were residing. On the pointing out of accused Irfan accused Rakesh as well as Suraj were arrested vide arrest memos exhibited as Ex. PW9/H & Ex. PW9/H1 bearing my signatures at Point A. The personal search memos of both the accused were also prepared vide Ex. PW9/H2 & Ex. PW9/H3 both memos bear my signatures at Point A. Accused Rakesh also handed over two mobile phones one make Samsung and other make Onida which were used in the crime by him. Both the mobile phones were seized by the 10 through seizure memo exhibited as Ex. PW9/H4. The disclosure statements of both the accused were also recorded separately vide memos Ex. PW9/H5 & Ex.PW9/H6.

All the accused persons took the police team to the place where they had given beatings to the deceased as well as the place where they had FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 23 of 72 committed his murder. The pointing out memos of both the places were prepared separately exhibited as Ex. PW9/K & Ex. PW9/K1 bears my signatures at Point A. Thereafter, accused Irfan took the police team near his house i.e. House No. C-52, Gali No. 7, Kachi Colony, Madanpur Khadar and got recovered one Santro Car of light golden colour bearing registration no. HR-26P-6738 which was used by overtaking the vehicle of deceased. The said vehicle was taken into possession vide seizure memo exhibited as Ex. PW9/L. bearing my signatures at Point A. Thereafter, accused Irfan got recovered one white colour Kurta Salwar which he was wearing at the time of murder of deceased. The said clothes were having blood stain marks and same was seized by the 10 vide memo Ex. PW9/L1. Accused Rakesh as well as accused Suraj also got recovered their blood stain clothes i.e. pant-shirt which they were wearing at the time of murder of deceased. These clothes were seized through separate seizure memos exhibited as Ex. PW9/12 & Ex. PW2/L3 and both the memos bear my signatures at Point A. Thereafter, all the three accused person took the police team to the house of deceased in village Kursheda in District Noida, U.P. where they have handed over the car as well as mobile phone of deceased. The maruti car bearing registration no. DL-2CR-5093 which was standing near the house of deceased was taken into possession vide seizure memo already exhibited as Ex. PW6/H bearing my signatures at Point A. One mobile phone of deceased make Nokia was handed over to the IO by the wife of deceased and same was seized by the IO vide FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 24 of 72 seizure memo exhibited as Ex. PW6/I. Thereafter, we returned to the PS and case property was deposited in the Malkhana. On 11.12.2013, the wife of deceased namely Noor Fatima came to police station and handed over some documents regarding her Nikah with accused Irfan @

Furkan. IO seized the said documents vide seizure memo already exhibited as Ex. PW6/C bearing my signatures at Point B. Postmortem of deceased was got conducted by the 10. After postmortem, 10 received certain exhibits from the doctor and same were taken into possession vide seizure memo Ex. PW9/M bearing my signatures at Point A. My statement was recorded by the 10.

I can identify the case property, if shown to me. At this stage, one sealed envelop with the seal of FSL, Delhi mentioning case particulars and pullanda no. 15 is produced by MHC(M). Same is opened. It is found containing one kurta and pajama of white colour. The witness identified the said clothes belongs to accused Irfan @ Furkan and same is now exhibited as Ex. P1 (colly.).

At this stage, one sealed envelop with the seal of FSL, Delhi mentioning case particulars and pullanda no. 17 is produced by MHC(M). Same is opened. It is found containing one pant of brown colour and one checked shirt of green and brown colour. The witness identified the said clothes belongs to accused Rakesh and same is now exhibited as Ex. P2(colly.). At this stage, one sealed envelop with the seal of FSL, Delhi mentioning case particulars and pullanda no. 16 is produced by MHC(M). Same is opened. It is found containing one black colour jeans and one blue and red strips shirt.

FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 25 of 72 The witness identified the said clothes belongs to accused □uraj and same is now exhibited as Ex. P3(colly).

At this stage, MHCM produced total five mobiles make ONIDA, SAMSUNG Duos Ex.P1 and P2 are shown to the witness and correctly identified by the witness and witness state that this two mobiles were recovered from the accused Rakesh. One mobile make SAMSUNG Ex.P3 is also shown to the witness who correctly identified the same and stated that same was recovered from accused Suraj. Another mobile Ex.P4 make NOKIA Ex.P4 is correctly identified by witness and state that same was recovered from accused Irfan @Furkan. Another mobile make NOKIA having black and brown colour Ex.P5 is also shown to the witness who correctly identified the same and states that the same was handed over to IO by the wife of deceased stating that the same belongs to deceased Nabi Mohd.

At this stage, MHCM produced one photograph of one Maruti Car 800 bearing no.DL2CR-5093 and another car in same photograph Hyundai Santro bearing no. HR26-P-6738 is shown to the witness and witness has correctly identified the same. Photograph is now Ex.P8.

XXXXX by Sh. Jitender Tyagi, Ld. Counsel for the accused Rakesh and Sh. Manoranjan Gaur, Ld. LAC for the accused Suraj.

It is correct that there is no eye witness of the present incident and the case was registered on the basis of DD entry 21-A dated 10.12.2013. It is also correct that the co-accused Irfan @ Furkan was arrested first in the present case and on the basis of his disclosure statement, both the accused persons namely Rakesh and Suraj were FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 26 of 72 arrested. It is correct that no witness was available to point out the accused Rakesh and Suraj for pointing out to them regarding their involvement in the present case. Vol. The wife of deceased was already aware about the involvement of the accused persons as they had given the key and vehicle as well as mobile phone of the deceased on the next day of the incident. It is wrong to suggest that according to the prosecution story, the aforesaid articles were given to the wife of the deceased by the co- accused Irfan @Furkan. It is further wrong to suggest that the wife of the deceased had not named the accused Rakesh and Suraj as the person involved in the present incident. It is further wrong to suggest that the both the accused persons Rakesh and Suraj were arrested falsely on the basis of disclosure statement of accused Irfan @Furkan who is already PO. It is correct that the statement of the wife of deceased Nabi Mohd., was not recorded by the IO prior to the arrest of the accused persons namely Rakesh and Suraj. Statement of last seen witness namely Jaswati and Nathu Lal was not recorded in my presence. The mobile phone allegedly recovered from the possession of accused Rakesh were used for talking with co- accused Irfan @Furkan. I do not know whether IO had obtained the CDR of the said mobile phones of accused Rakesh were used for talking with co-accused Irfan @ Furkan. The set of mobile phone without SIM was taken into personal search of the accused Suraj. It is wrong to suggest that the accused Rakesh had never handed over the above said mobile phone stated by me or that the said mobile phone were never used in the commission of the alleged crime or FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 27 of 72 that the same were falsely seized by the IO to fabricate the false evidence against him. It is further wrong to suggest that the clothes allegedly seized by the IO of both the accused were planted upon them in the police station and they had never participated in the commission of the alleged crime. It is correct that no public person were joined during the whole proceedings. It is wrong to suggest that IO had obtained the signatures of the accused persons namely Rakesh and Suraj on several blank papers forcefully and same were misused against them during investigation. It is further wrong to suggest that both the accused persons had not made any disclosure statement or pointing out memo regarding the place of incident etc. It is wrong to suggest that disclosure statement of both the accused persons and pointing out memos were fabricated by the IO in the police station. It is further wrong to suggest that the accused persons namely Rakesh and Suraj were falsely arrested in this case without any lawful evidence against them or that I am deposing falsely being a police official and at the instance of IO.

After the arrest of PO accused Irfan @ Furkan PW 9 was again called for examination. Ld. Defence Counsel for accused Irfan @ Furkan has submitted that defence has no objection if the examination in chief recorded in the absence of the

accused is adopted by the prosecution. Accordingly, Ld. Additional PP has adopted the part examination in chief recorded during the absence of the accused Irfan @ Furkan.

Further, Ld. Additional PP has examined the witness only regarding the identification of the FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 28 of 72 accused.

I can identify the all the accused persons, if shown to me.

At this stage, witness has correctly identified the accused Irfan @ Furkan and Rakesh present in the Court today. (accused Suraj @ Sajid is PO). XXXX by Sh. Ajit Singh Tomar, Ld. Counsel for the accused Irfan @ Furkan.

My duty hours on dated 10.12.2013 were from 8 AM till 8 PM. My departure entry for the case is already mentioned in DD No. 21A but no separate DD entry was made regarding departure. The spot where dead body was found was about 700-800 meters from the PS Jaitpur. I had gone at the spot on my personal motorcycle. I do not remember its registration number. I reached at the spot between 03 PM to 03:15 PM. I remained at the spot for 4/5 hours. My statement u/s 161 CrPC was recorded by the IO on 10.12.2013 in the police station around 8 PM.

Accused Irfan was arrested in the late night of 11-12.12.2013 at about 12 Mid-night. The information of his arrest was conveyed to his wife. I do not remember the name of his wife or her mobile number. The arrest memo of accused was prepared at around 12/12:30 AM. The IO did not record statement of any public person at the spot when the body was found there. (vol. However, IO made inquiries from the public persons). I do not remember whether IO served any notice on any public person at that time. I do not remember whether IO noted down the names and addresses of the public persons. It is wrong to suggest that the accused was not arrested from the Samosa Chowk as he himself had gone to the police station as he was FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 29 of 72 called for inquiry in police station. It is correct that there was no public witness at the time of arrest of accused Irfan (vol. It was late night hours). I do not remember whether IO recorded statement of any public persons namely Jashwanti and Nathu Lal in my presence. It is wrong to suggest that the accused Irfan has been falsely implicated in the present case. It is wrong to suggest that the mobile phone of accused Irfan was not seized in my presence. It is wrong to suggest that accused never handed-

over the mobile phone to the police. It is wrong to suggest that the mobile phone has been falsely seized in the case. It is wrong to suggest that the clothes of the accused Irfan were seized from his house and same were not the clothes which he had worn at the time of alleged incident. (vol. Same were seized from his house at his instance). The police station Jaitpur was located where now PS

Kalindi Kunj is located. It is wrong to suggest that it was situated on the main road. (vol. It is a connecting road). It is wrong to suggest that it was situated on JJ Colony road. There is no public witness regarding the disclosure statement of the accused Irfan (vol. It was recorded in the late night hours). It is correct that there is no public witness regarding the proceedings conducted regarding the accused Irfan (vol. There was no public witness available due to late night hours). I do not remember the time when the accused Irfan was produced in the Court. It is wrong to suggest that disclosure statement of accused Irfan and pointing out memos were fabricated by the IO in the police station. It is wrong to suggest that accused Irfan @ Furkan was falsely arrested in the present case. It is wrong to FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 30 of 72 suggest that I am deposing falsely.

Accused Suraj @ Sajid is already PO."

29. PW - 10 Ct. Hawa Singh / part of initial investigation conducted with Inspector Ravinder, Ct. Brij Pal and Ct. Sudhir.

30. PW - 11 HC Brij Pal has deposed as per the version of PW - 9 and further deposed regarding arrest proceedings of accused Irfan @ Furkan and seizure proceedings of the case property. After the arrest of PO accused Irfan @ Furkan PW 9 was again called for examination.

> "Ld. Counsel for accused Irfan has submitted that Defence has no objection if the previous examinations in chief recorded on 17.09.2019 and 18.09.2019 may be adopted by the prosecution. Accordingly, the prosecution has adopted the examinations in chief recorded on 17.09.2019 and 18.09.2019 and witness is further examined in chief in regard to the identification of the accused Irfan. I can identify the accused Irfan if shown to me. At this stage, accused Irfan produced from J/C present in the court, correctly identified by the witness.
>
> XXXXX by Sh. Jitender Tyagi, Ld.Counsel for accused Irfan @ Furkan and Rakesh.
>
> For the first time, I joined the investigation at about 3.15 pm. It is correct that initially dead body could not be identified as the face was disfigured and there was no flesh on the neck and the neck bones could be seen. In FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 31 of 72 the purse found with the body, there were some visiting cards and also bank deposit slip and from the slip, his identification was revealed after inquiry. The IO did the verification on the basis of deposit slip. I do not know the IO visited which bank and made inquiry from which bank officer or other person. I do not know whether IO or any other police official went to the family of the identified deceased to inform about the deceased. The wife of deceased came to the hospital in my presence but she did not the IO in my presence that she had lodged any missing report regarding her husband. I do not know whether she told the IO the date from which her husband was missing. It is correct that there was no eye witness till the registration of the FIR. I do not remember whether the statement of Noor Fatima was recorded in my presence.

When the accused was arrested in the intervening night of 11.12- 12.2013, there was no eye witness who had deposed in my presence that he had seen accused Irfan killing the deceased. He was arrested since he had threatened the wife of deceased and had stated that she shall not disclose that he had committed the murder. It is wrong to suggest that no such statement was given by wife of deceased and police created such version of case so as to solve a blind murder case. It is wrong to suggest that accused Irfan was only called on the pretext of inquiry in the police station and thereafter he was arrested in the police station. It is wrong to suggest that IO obtained signatures of accused Irfan on blank documents forcefully and thereafter converted them into disclosure documents/other incriminating documents or accused had not FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 32 of 72 given any disclosure statements regarding his involvement in the present case. It is wrong to suggest that accused Rakesh was arrested without any material against him. Vol. One lady had given statement that some boys were beating one person. It is wrong to suggest that accused Irfan did not give any disclosure statement regarding his, Rakesh and Suraj involvements in the murder of the deceased and same was prepared by the IO on his own.

It is wrong to suggest that no lady had given any statement that she had seen such boys beating the deceased. It is wrong to suggest that IO had written such statement on his own. It is wrong to suggest that the IO obtained signatures of Rakesh on blank documents whereas he has not given any disclosure statement and thereafter IO converted such blank signed documents into disclosure statement and other incriminating documents. It is wrong to suggest that accused Suraj was not apprehended at the instance of accused Irfan and Rakesh or that they have no knowledge as to how Suraj was apprehended. It is correct that place of dead body was already known to the police before the arrest of accused. It is wrong to suggest that no pointing out memo was prepared at the instance of accused persons. It is wrong to suggest that accused Irfan led the police to the wife of deceased and thereafter wife of deceased created a false story so as to save herself from criminal prosecution. I do not know who was the subscriber of the mobile phone recovered at the instance of accused Irfan @ Furkan. I do not remember whether IO made efforts to join public witnesses during the recovery of the mobile phone or the Santro Car. It is wrong to FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 33 of 72 suggest that I am giving evasive answers as accused did not got recovered such mobile or the santro car. It is wrong to suggest that accused Irfan or Rakesh did not got recovered any clothes. It is wrong to suggest that IO procured such clothes from somewhere and planted the same in the police station. It is wrong to suggest that accused Irfan did not give any subsequent disclosure regarding the recovery of knife from Yamuna Khadar Jungle or that when for five days no evidence could be found against him, the alleged knife was planted on him after preparing a bogus false disclosure statement after obtaining his signatures on blank papers. It is wrong to suggest that he did not get recovered any churri/knife and that same was planted on him in the police station. No public witness had signed the recovery documents

regarding the knife. It is wrong to suggest that there is no public witness on such document as the recovery has been planted. It is wrong to suggest that the case exhibits taken by me on 09.01.2014 had been tampered. It is wrong to suggest that I have wrongfully identified the accused persons or that they have no role in the alleged offence. It is wrong to suggest that I have identified the alleged clothes at the instance of the IO or that the said clothes do not pertain to accused persons. I do not know whether the IO made inquiry as to who was the subscriber of the phone recovered from accused Rakesh. The mobile phones were recovered from two accused and no mobile phone was recovered from one of the accused. Again said, I do not remember. It is wrong to suggest that no mobile phone was recovered from accused Irfan and Rakesh and the alleged mobile phones have FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 34 of 72 been planted on them. I do not know whether IO verified the registered owner of the maruti car and the santro car but as per my knowledge the maruti car was of deceased and the santro car was of accused Irfan. It is wrong to suggest that said santro car was neither of accused Irfan nor was recovered at his instance. It is wrong to suggest that no proceedings was conducted in my presence or that I have been cited as a planted witness to fill up the lacuna in the investigation of the case. It is wrong to suggest that I am deposing falsely.

Accused Suraj @ Sajid is PO. "

31. PW - 12 Dr. Sanjeev Lalwani, Professor, Forensic Medicine, JPN, Apex Trauma Center, AIIMS, New Delhi has deposed as follows:-

" On 11.12.2013, I alongwith Dr. Karthik Krishna, senior resident conducted post-mortem examination on the body of deceased Nabi Mohd., S/o Sh. Aar Mohd., 28 years old male, resident of Village Kuleshra, NOIDA, U.P. The body was brought with alleged history of dead of a male found at Yamuna Khadar on 10.12.2013 with dis figuration of body part above the shoulder.

On examination, deceased was wearing a red colour full sleeves (labled as Reebok New Era choice), blue colour T Shirt, white colour shirt, blue colour jeans pant with white colour belt and metalic buckle, gray yellow colour checked shorts, a pair of white colour shoes, a pair of brown colour socks. There were blood stains on arm and collar part of clothes with soiling.

FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 35 of 72 Rigor mortis was present on lower limbs. Lividity was pale and was present back and dependent areas except pressure area.

External appearance of the body :-

The soft tissues of the facial region including both ear pinnae, nose, left eye ball missing except for a patch of skin over the left eye brow. The facial skeleton, external auditory meatus and tooth are exposed. The margin of the wound on the face over left eye brow showed nibbled markings and is dry pale and avascular. The nasal bones show nibbled markings with exposure of nasal chambers. The soft tissue over the entire neck region including the skin platysma, muscles, oesophagus, trachea, blood vessels, tongue and laryngeal, structures were missing with exposure of both clavicles and the cervical vertebrae. The margin of the wound shows nibbled markings and is dry, pale and avascular.

On examination the following Injuries were observed on the body of the deceased :-

1. A wound measuring 4 x 1 cm is present on the anterior surface of 6th cervical vertebra, with clean cut regular margins, cutting through the body of the vertebra completely and transecting the spinal cord surrounded by hematoma. There is a tag of soft tissue attaching the proximal cervical vertebral bones to the rest of the trunk.

2. Fracture of the right temporo-

parietal skull bone, depressed type, is present over an area of 10 x 12 cm and is associated with hematoma. The underlying brain is contused and edematous. There is diffuse FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 36 of 72 subdural and subarachnoid hematoma present on the cerebral hemisphere. On removing the brain, a fissured fracture of base of skull with fracture line extending through the middle cranial fossa is present and is associated with hematoma.

3. A brownish coloured abrasion of size 1.5 cm x 1 cm is present on the outer and upper aspect of the right forearm region.

After the post-mortem, Visceras were preserved alongwith sternum for DNA, scalp hairs (plucked) and nail clippings.

The time since death was about one and a half day.

The cause of death: In the present case, the cause of death was shock due to head and spinal injuries. Injury no. 1 is caused by heavy sharp edged weapon, injury no. 2 is caused by blunt object. The injuries are individually sufficient to cause death in ordinary course of nature.

The injury no. 1 and 2 are ante-

mortem in nature and fresh in duration. The visceras were preserved to rule out any concomitant poisoning.

Dr. Kartik Krishna is no longer working at AIIMS and is currently in United Kingdom. Since he had worked with me and I seen him while writing and signing and therefore, I can identify his signature

at point A on the post-mortem report. After the post- mortem, the post-mortem report was prepared which is now Ex.PW12/A bears my signature at point B. XXXXX by Sh. Manoranjan Gaur, Ld. LAC for the accused Suraj.

XXXX Nil., Opportunity Given.

XXXXX by Sh. Rajesh Pandey, Ld. Counsel for FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 37 of 72 the accused Rakesh.

XXXX Nil., Opportunity Given."

32. PW - 13 Inspector Chetram has deposed that he was posted as the fingerprint expert in Mobile Crime Team South-East District. On 17.12.2013, he visited the place of occurrence along with his team. Other officials of his team done their work there. He tried to find for fingerprints but no fingerprints were found.

33. PW - 14 HC Bijender Singh has deposed that on 10.12.2023, he was posted at CPCR as Constable and was performing duty in B shift and he received a call from mobile No. 9818289274 in respect of lying a dead body in the fields of Shreeram Chowk ahead of PS Jaitpur and he prepared the PCR form Ex.PW14/A and dispatch the same to concerned operator at command room.

34. PW - 15 Sh. Pawan Singh, Nodal Officer, Vodafone, IDEA Ltd., Mohan Estate, New Delhi has deposed as follows:-

> "I have joined as Nodal Officer in IDEA Cellular Limited since, 2005 and my company merged with Vodafone in the year 2018. One reply of the notice u/s 91 Cr.P.C was given by the then Nodal Officer Sh. Saurabh Aggarwal of Vodafone on 03.02.2014 to the IO in relating to the mobile no. 9899225156, FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 38 of 72 8860938347 and 9627138146 for the period from 01.12.2013 to 15.12.2013. Sh. Saurabh Aggarwal is no more working in Vodafone and has left the services from there two years ago, however, I can identify his hand-writing and signatures since, I have been worked with him and seen him writing and signing during ordinary course of our duties. The present whereabouts of Sh. Saurabh Aggarwal is not known. The reply of the said notice bears his signatures at point A. The said reply is now exhibited as Ex. PW15/P-1. I have also seen the CAF (Customer Application Form) of the number 9627138146 of Sh. Om Prakash along with ID and CDR. Same bears the signature of Sh. Saurabh Aggarwal on each page of said record. The CAF alongwith ID of the subscriber is now exhibited as Ex. PW15/P-2 (colly) and the CDR is Ex. PW15/P-3. The Certificate u/s 65-B, Indian Evidence Act, 1872 regarding CDR of aforesaid number had been issued by Sh. Saurabh Aggarwal and bears his signature at point A. The certificate is now Ex. PW15/P-4.

I have also seen the CAF (Customer Application Form) of the number 8860938347 of Ms. Noor Fatama alongwith ID and CDR. Same bears the signature of Sh. Saurabh Aggarwal on each page of said record. The CAF alongwith ID of the subscriber is now exhibited as Ex. PW15/P-5 (colly) and the CDR is Ex. PW15/P-6. The Certificate u/s 65-B, Indian Evidence Act, 1872 regarding CDR of aforesaid number had been issued by Sh. Saurabh Aggarwal and bears his signature at point A. The certificate is now Ex. PW15/P-7.

FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 39 of 72 I have also seen the CAF (Customer Application Form) of the number 9899225156 of Ms. Gulayrukhsar alongwith ID and CDR. Same bears the signature of Sh. Saurabh Aggarwal on each page of said record. The CAF alongwith ID of the subscriber is now exhibited as Ex. PW15/P-8 (colly) (objected to by the Ld. Defence Counsel stating that it is a photocopy) and the CDR is Ex. PW15/P-9. The Certificate u/s 65-B, Indian Evidence Act, 1872 regarding CDR of aforesaid number had been issued by Sh. Saurabh Aggarwal and bears his signature at point A. The certificate is now Ex. PW15/P-10.

XXXXXXXXXX by Sh. Rajesh Pandey, Ld. Counsel for the accused Rakesh (other accused are P.O.).

It is wrong to suggest that the aforesaid documents are manipulated and have bene manufactured."

35. PW - 16 ASI Sanjay Nagar has deposed that on 10.12.2013, he was posted as MHC(M) in PS Jaitpur and he deposited the case exhibits of the present case brought by Inspector Ravinder Tomar on different dates i.e. 10.12.2013, 11.12.2013, 12.12.2013 and 17.12.2013 and made entries regarding the deposition in the case Register No. 19 vide Ex.PW16/P1, Ex.PW16/P2, Ex.PW16/P3 and Ex.PW16/P4 respectively.

36. PW - 17 Ms. Sonu B. Singh, Medical Record Technician, Medical Record Section, AIIMS deposed on behalf of Dr. Tatineni FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 40 of 72 Venu Gopal as follows:-

"I am working in the aforementioned department since 2001 as SMRT. In the year 2013 also I was working as MRT, AIIMS. I have been deputed by MRO Sh. Devanand Sharma to appear and depose on behalf of Dr. Tatineni Venu Gopal who had worked in the said department as JR from 24.10.2013 to 31.12.2013. I had seen him writing and signing during the course of our official duty and I can identify his handwriting and signatures. The said authority letter is Ex.PW17/P1.

The MLC No.99-2013/030/0125781 dated 10.12.2013 of unknown person was prepared by Dr. Tatineni Venu Gopal and the signatures are at point A on said MLC. The said MLC is now Ex.PW17/P2 bearing his signatures at point A. The said doctor

had now left the hospital and his present whereabouts are not known. XXXXX by Sh. Rajesh Pandey, Ld. Counsel for accused Irfan @ Furkan and Rakesh.

I have no personal knowledge about the contents of the MLC. The address of Dr. Tatineni Venu Gopal are available in our records and the address is of 1-13, Gopu Vani Palem, Pamidimukkala Mandal, Krishna West, Andhra Pradesh 521256. It is wrong to suggest that I never worked with him and I had never seen said doctor signing and writing and I cannot identify his signatures. "

37. PW - 18 HC Puneet Singh was the photographer in the Mobile Crime Team, South-East District and on 10.12.2013, he along with his team went to the fields of Yamuna Khadar, Pusta FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 41 of 72 Road and he took photographs of the spot/ dead body from different angles. The photographs are Ex.PW18/P1 (colly) (23 in numbers) and the negatives of the said photographs are Ex.PW18/P2 (colly).

XXXX by Sh. Rajesh Pandey, Ld. Counsel for the accused Ifran @ Furkan and Rakesh.

The call was received at around 03:25 PM and they reached at the spot within 30-35 minutes. PW18 does not remember who else other than Inspector Ravinder was present at the spot when they reached there. At that time, PW18 used official camera for taking the photographs in the present matter i.e. Vivitar and the said camera was also being used for taking photographs in another matters. He denied the suggestion that he never visited the spot or that he have not taken any photographs at the spot. He denied the suggestion that he was not a member of mobile crime team on that day or that he was deposing falsely.

38. PW - 19 ASI Manoj Kumar has deposed that on 27.01.2014, on the instructions of IO he collected the case property from the MHC(M) and deposited the same at FSL, Rohini. He collected the case exhibits along with sample seals vide RC No. 42/21/14 and FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 42 of 72 RC No. 43/21/14. The same were deposited at the FSL, Rohini and acknowledgment was received and PW19 handed-over the acknowledgment receipts to MHC(M).

XXXX by Sh. Gaurav Bidhuri, Ld. Counsel for the accused Irfan @ Furkan and Rakesh.

PW19 denied the suggestion that the alleged property has been implanted upon the accused persons at the instance of the IO.

39. PW - 20 ASI Vikar Kumar was the Special Messenger and he was provided three envelopes with instructions to deliver the same to DCP, South-East, Join CP and Ld. MM concerned and he delivered the same to the said officers.

40. PW - 21 Inspector Prem Kumar has deposed as follows:-

"On 16.12.2013, I was posted at PS Jaitpur as SI. On that day, I had joined the investigation of this case. During investigation, accused Irfan had disclosed to the IO that he has thrown the knife at Sikandarabad, UP. He further modified his disclosure statement by saying that he threw the knife near Shri Ram Chowk and he can get recovered the same. The said supplementary disclosure statement is already Ex.PW11/A, bearing my signature at point B. FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 43 of 72 On 17.12.2013, I along with Ct.

Brijpal, Ct. Rajesh, Ct. Hawa Singh and HC Matlub along with IO and accused Irfan went to the bushes at Khadar near Shri Ram Chowk. From there, he got recovered a knife from the said spot by saying that he used the said knife in killing of Md. Nabi. The knife was having blood stain. Knife was taken into our possession and it was measured. After measurement, the length of knife was found 33.7 Cm and blade was found 20.7 Cm. The handle was 13 Cm. On the handle, BERJENER and on the other side EDELSTAHE ROAST written. The sketch of knife was prepared. The same is already Ex.PW11/B, bearing my signature at point B. Thereafter, knife was wrapped in a pulanda and sealed with seal of "RKT". Pulanda was taken into possession through seizure memo already Ex.PW11/C, bearing my signature at point B. I can identify the accused.

Witness has correctly identified the accused Ifran who is present in the Court today.

I can identify case property if shown to me (the knife is already Ex.MO1). XXXX by Sh. Jitender Tyagi, Ld. Counsel for accused Irfan @ Furkan and Rakesh.

Accused Irfan was already in custody when I was joined on 16.12.2013. I do not remember since how many days prior to 16.12.2013 he was in custody. It is correct that he was not arrested on 16.12.2013 and was already in custody. There was a previous disclosure statement of accused also prior to his disclosure statement given on 16.12.2013. I do not know if any and which police party went to recover the weapon on the basis of first FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 44 of 72 disclosure statement. I did not ask the IO as to what was the need of recording of supplementary disclosure statement. (Vol. IO was making further enquiry from accused when he stated that he was misleading the police earlier). The supplementary disclosure statement was recorded in the room of IO. It was recorded in evening hours. One other police official also signed as a witness on the disclosure statement. I do not remember the sequence of signing the disclosure statement. It is wrong to suggest that accused has not given either the primary or the supplementary disclosure statement. It is wrong to suggest that signatures of accused were obtained on some blank papers forcibly which were later on converted into alleged disclosure statement. It is wrong to suggest that accused never disclosed any information about any knife to the police. It is wrong to suggest that my signatures were obtained on the alleged disclosure statement subsequently by the IO so as to strengthen the case of prosecution. IO had tried to join public witnesses in the

recovery proceedings but none agreed stating their excuses. There were houses across the road from the bushes where the recovery was effected. IO did not ask any resident from said houses to join police proceedings. (vol. The houses were at some distance from the spot). The houses must be at least 100 meters away from the spot. It is wrong to suggest that since no recovery was effected from the alleged bushes therefore, no effort was made to join any resident from the houses nearby. It is wrong to suggest that the knife was planted on accused in the PS and he was not taken anywhere. It is wrong to suggest that accused never disclosed FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 45 of 72 that alleged knife was used in the killing of Md. Nabi. It is wrong to suggest that I am deposing falsely at the instance of the IO.

(Accused Suraj is PO).

41. PW - 22 Retired ACP Sh. Mahesh Kumar / Draftsman has deposed that he had prepared the scaled site plan of the place of incident i.e. Jaitpur, Pusta Road and Yamuna Khadar Jungle as Ex.PW22/P1.

42. PW - 23 HC Mahesh has deposed as follows:-

"On 17.12.2013, I was posted as Photographer, in Mobile crime team, south east district, PS CR Park, New Delhi. On that day I along with SI sanjay Kumar Incharge Crime Team, SI Chet Ram Fingerprint Expert reached at the spot i.e. near Shree Ram Chowk, Yamuna Khadar, Jaitpur. After reaching the spot we met Insp Ravinder along with his team. On the direction of SI Sanjay Kumar I took the photographs at the time of recovery of the knife and nearest place from different angles.

There after IO recorded my statement in this regard.

After that I handed over the negatives of the photographs to the IO.

At this stage I negative roll and 5 photographs attached in judicial file is shown to the witness, after seeing the same, witness deposed that the said photographs was clicked by him, out of which 2 photographes showing knife. The said photographs are now exhibited FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 46 of 72 as Ex. PW23/P1(colly, 5 photographes). The negatives are Ex. PW23/P2.

XXX by Sh. Jitender Tyagi, Ld. Counsel for the accused Irfan and Rakesh.

No accused were present when I clicked the photographs. It is wrong to suggest that I did not visit the spot and did not click the photographs as stated by me. It is wrong to suggest that IO has made me a false witness in the case."

43. PW - 24 Ms. Deepti Bhargava, Senior Scientific Officer has deposed that on 09.01.2014, one sealed corrugated box was received in Chemistry Division, CFSL, New Delhi through messenger Brij Pal for laboratory examination and the same was marked to PW24 for examination. She examined the case exhibits and prepared report dated 20.07.2023 which is Ex.PW24/P1 regarding the same.

44. PW - 25 Ms. Anu Aggarwal, Judicial Official who conducted the TIP proceedings of all the accused persons. The refusal regarding the TIP proceedings from all the accused persons were recorded vide Ex.PW25/P1 (Md. Furkan @ Irfan), Ex.PW25/P2 (Rakesh) and Ex.PW25/P3 (Suraj @ Sajid).

45. PW - 26 Retired ASI Hari Singh has deposed that on 10.12.2013, he was posted as DO and at about 02:57 PM, FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 47 of 72 information of a PCR call was received mentioning that in front of PS Jaitpur at Shree Ram Chowk there is a dead body lying in the field. PW26 recorded the said information vide DD No. 21A and informed SI Narender regarding the same for further action. The copy of said DD is Ex.PW26/P1.

46. PW - 27 Sh. Pankaj, Alternative Nodal Officer, Vodafone Idea Ltd has deposed as follows:-

> "I have been working as Nodal Officer in Vodafone Idea Limited since 01.03.2023.
>
> I have brought the Cell ID chart of the mobile no. 9899225156, 8860938347 and 9627138146.
>
> The cell ID chart of 9899225156 is Ex.PW27/P1 (3 pages) bearing my signature at point A. The cell ID chart of 8860938347 is Ex.PW27/P2 bearing my signature at point A. The cell ID chart of 9627138146 is Ex.PW27/P3 bearing my signature at point A. The CDRs and CAF of said mobile numbers have already been exhibited by Nodal Officer PW15 Pawan Singh.
>
> xxxxx by Sh. Jitender Tyagi, Ld. Counsel for both accused.
>
> I cannot tell about the range of a single tower of the mobile company. I do not know that the place of incident and the Samosa Chowk is less then half kilometer. The ID documents like aadhar or voter ID Card are FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 48 of 72 taken for issuance of SIM cards. In this case Voter ID was taken.
>
> It is correct that we do not have the original documents taken for the CAF. It is correct that it is the separate department of the company which issues the SIM.
>
> It is wrong to suggest that I am deposing falsely."

47. PW - 28 Dr. Sarabjit Singh, Senior Scientific Officer (Biology), FSL Rohini has deposed as follows:-

" I have been working in the aforesaid institute since 2014.

On 27.10.2014, 18 sealed parcel were received in our office at FSL, Rohini asnd the same was marked to me for examination. Before examination, I throroghly check for the sample seal and found intact and also tallied with specimen seal.

On biological examination, blood was detected on exhibits Ex. 1,Ex.2, Ex.4, Ex.5, Ex.6, Ex.7, Ex.8, Ex.9, 10a, Ex.10b, Ex.10c, Ex.10d, Ex.10e, Ex.10f, Ex.10g, Ex.10h, Ex.11, Ex.12, Ex.13, Ex.14, Ex.15a, Ex.15b and Ex.18.

Blood could not be detected on exhibits 3. 16a, 16b, 17a and 17b.

Skin/tissue could not be present an exhibits 11 and 12.

On serological examination, B group generated for exhibits 9, 10b, 10c, 10e, 10f, 10h, 14, 15a, 15b and 18.

My detailed report in this regard is Ex.PW28/P1 and Ex.PW28/P2, bearing my signatures at Point A. After examination, remnants FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 49 of 72 were resealed with the seal of SSS FSL DELHI.

XXXX by Sh. Jitender Tyagi, Ld. Counsel for the accused Rakesh and Irfan @ Furkan.

It is correct that blood group could not be detected from the knife. The blood sample was also sent in the form of blood in gauze for examination and as per our report the blood group of blood in gauze was found as group B. I do not know if the said blood in gauze was of accused or not. The said sample was at Sl. No. 14. I cannot say that if the said sample no.14 was of deceased or accused as the information in this regard was not sent to me. I did not ask to the IO about the sample of Sl. No.14 to whom it belongs. I do not remember the exact duration and date of the validation of NABL of our machinery. However, it remained valid for 1 year and number of its validation is T-1705.

Q. I put it to you can you tell me the date and duration of validatoin of T-1705. Ans. It is not the part of the report, however, the caliberation done every year and in the year of 2015 it was done too. It is not mentioned in the report itself.

It is wrong to suggest that certification of NABL was not valid for the relevant time of period of my examination. It is correct that I was not asked by the IO for DNA examination. The report is prepared as nature of examination as required by IO. It is wrong to suggest that certification of NABL of our machines was not valid at the relevant time (at the time of examination of the exhibits of the present case) so my

report is not correct. It is wrong to suggest that I have prepared false FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 50 of 72 report at the instance of IO or that I am deposing falsely."

48. PW - 29 Inspector Raj Kumar Singh / IO of the supplementary charge-sheet / has deposed that he prepared the supplementary charge-sheet regarding the FSL result.

49. PW - 30 Inspector Ravinder Kumar Tomar has deposed as follows:-

"On 10.12.2013, I was posted as Inspector, ATO at PS Jaitpur. On that day, I was present in PS. PCR call vide DD No.21A at 02:57 PM was received in PS regarding "Jaitpur thane ke aage shri ram chowk kheto me ek dead body padi hai". Call was marked to SI Narender who along with his staff reached at the place of occurrence. On confirmation from IO, I along with other staff also reached at the spot. The scene of crime was about 500 meters from Pusta towards Yamuna River. At the spot, a male dead body aged about 25/30 years was found lying in the jungle area. A lot of blood was spread near the dead body. The face of the body was completely disfigured. Near the neck of the body only bones were visible. On further examination, a brick on which cement was also attached was also lying there and was having blood stains and some hair stuck to it. At that time, crime team had also arrived at the spot. Crime team has also inspected the scene of crime and taken photographs of the scene of crime from various angles. They also lifted FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 51 of 72 exhibits from the scene of crime. After lifting the exhibits, IC Crime team SI Sanjay Kumar handed over the exhibits to me. In the meantime, on the perusal of the scene of crime, on the basis of DD entry and circumstances a tehrir was sent to PS through Ct. Hawa Singh and a case vide FIR No.461/13 u/s 302/201 was got registered. Investigation was conducted by me. I also prepared the rough site plan of the crime scene. Same is now Ex.PW30/P1, bearing my signature at point A. After completion of the inspection, the exhibits handed over by IC Crime team were seized through seizure memo. The seizure memo regarding the brick having the blood stains is already Ex.PW9/B, bearing my signatures at point C. The seizure memo regarding the other exhibits seized from the spot i.e. blood stained grass, earth control etc is already Ex.PW9/C, bearing my signature at point C. Efforts were made to identify the deceased. On further search of the body of deceased there was a purse in his pocket which was containing some visiting cards, metro rail pass, some photographs, some paper pieces and a bank deposit slip which were seized through seizure memo. The seizure memo regarding the same is already Ex.PW9/A, bearing my signature at point C. After making efforts to identify the deceased, the body of deceased was shifted to AIIMS Mortuary through Ct. Brij Pal. On further investigation, the bank slip which was seized from the purse of the deceased, it was revealed that there was transaction of deposition of Rs.40,000/- in the account of one Shehnaz in Jamia Cooperative Bank. During further investigation, the lady Shehnaz was contacted. She revealed that her husband Irfan FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 52 of 72 @ Furkan who

was not at home at that time can reveal further details. After sometime, Furkan also joined investigation and after showing the photographs and bank slip details, Irfan @ Furkan identified the photos were of Nabi Mohammad and Noor Fatima. He knows them and they reside in Kuleshara, Noida. On further investigation, Noor Fatima was also joined in the interrogation and she was shown the photographs of the deceased and she identified the deceased as her husband Nabi Mohammad. She was further taken along to AIIMS Mortuary where she identified the dead body of deceased as Nabi Mohammad her husband. She further stated that Nabi Mohammad left home in the evening on 09.12.2013 and did not return home. She was released after recording her statement in this regard.

On 11.12.2013, postmortem of deceased was got conducted in AIIMS and after completion of PM, dead body was handed over to the relatives Noor Fatima vide identification memo already Ex.PW6/A, bears my signature at point B. The exhibits which were handed over by the doctor after postmortem were also seized vide seizure memo already Ex.PW9/M, bearing my signature at point B. During further investigation of the case, CDR of Irfan @ Furkan and the deceased Nabi Muhammad were obtained and on the analysis of call details, it was revealed that on the preceding night of commission of crime there were frequent calls between Irfan @ Furkan and deceased Nabi Muhammad. The mobile number of accused Irfan was 9899225156 and the mobile number of deceased was 8860938347. Location chart of FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 53 of 72 the mobile number was also obtained and it was revealed that the mobile number of Irfan @ Furkan and that of deceased Nabi Muhammad were having identical location at about 09:42 PM on 09.12.2013. Furkan @ Irfan was further interrogated and during interrogation he confessed to the commission of crime and further revealed that he along with his friends Rakesh and Suraj @ Sajid had committed the crime. On further interrogation and getting his involvement, he was arrested and relevant documents of arrest memo, personal search memo and disclosure statements were recorded. The arrest memo of accused Irfan @ Furkan already Ex.PW9/D, bearing my signature at point C. The personal search memo is already Ex.PW9/E, bearing my signature at point C. His disclosure statement was recorded vide memo already Ex.PW9/G, bearing my signature at point C. On the instance of accused Irfan @ Furkan co-accused Rakesh and Suraj @ Sajid were also detained from B-12, Gali No.19, Kacchi Colony, Madanpur Khadar and they were interrogated and arrested in the case. Relevant documents i.e. arrest memo, personal search memo and disclosure statements of said accused were recorded. The arrest memo of accused Rakesh already Ex.PW9/H, bearing my signature at point C. The personal search memo is already Ex.PW9/H2, bearing my signature at point C. His disclosure statement was recorded vide memo already Ex.PW9/H6, bearing my signature at point C. The arrest memo of accused Suraj @ Sajid already Ex.PW9/H1, bearing my signature at point C. The personal search memo is already Ex.PW9/H3, bearing my signature at point C. His disclosure FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 54 of 72 statement was recorded vide memo already Ex.PW9/H5, bearing my

signature at point C. During further interrogation of the present case, the accused Irfan @ Furkan revealed that he met Nabi Mohammad about 3 years back at that time Nabi Mohammad visited his house for whitewash. Nabi Mohammad called Furkan that he is a poor person and is facing financial difficulties. Irfan advised him to employ his wife at some work. Nabi Mohammad brought his wife Noor Fatima at the residence of accused Irfan and Irfan helped to get her a private job in some factory. During this time, both of them came close to each other and later on developed illicit relations. Later on, Nabi Mohammad came to know about the relationship and he used to exploit Irfan @ Furkan and used to threaten to reveal their relationship to the wife of Irfan. Fed up with the situation, Irfan @ Furkan decided to eliminate Nabi Mohammad. During further interrogation, Irfan disclosed that on the fateful night Nabi Mohammad came to Kalindi by his Maruti car bearing registration no. DL 2CR 5093 and Irfan along with co-accused Rakesh and Suraj @ Sajid were waiting for him at Pusta Road in his Santro car bearing registration no. HR 26P 6738. At about 09:30/09:55 PM on 09.12.2013 the accused persons stopped the deceased at Pusta Road and started fighting where a lady residing in a jhuggi asked them to go away else she will make a PCR call. On that, Irfan asked Rakesh and Suraj to take Nabi Mohammad in his Maruti car to the Yamuna river bank. During this fight, the accused Irfan @ Furkan lost the key of his Santro car at Pusta road and was left behind the co-accused. Later on, Rakesh called him and FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 55 of 72 asked to bring weapon which was kept in the vehicle of Irfan. Later on Irfan joined Rakesh and Suraj along with the weapon of offence i.e. knife and brick and all the three together beat and killed the deceased Nabi Mohammad. During further investigation, at the instance of accused persons the clothes which were worn by all three accused and which were having blood stains over them were also seized through seizure memo. The clothes worn by Irfan @ Furkan had been washed but still having visible traces of blood over them. The seizure memo of clothes of accused Irfan is already Ex.PW9/L1, bearing my signature at point C. The seizure memo of clothes of accused Rakesh is already Ex.PW9/L2, bearing my signature at point C. The seizure memo of clothes of accused Suraj @ Sajid is already Ex.PW9/L3, bearing my signature at point C. During interrogation, the mobile phone of accused Irfan by which he had made calls to deceased Nabi Mohammad was also seized through seizure memo Ex.PW9/F, bearing my signature at point C. It was the Nokia phone of black color and the IMEI number of the same have been mentioned in the seizure memo. The mobile phone of accused Rakesh was also seized through seizure memo Ex.PW9/H4, bearing my signature at point C. It was the Samsung Duo phone of black color and the IMEI number of the same have been mentioned in the seizure memo. Accused Irfan further disclosed that after commission of crime on 09.12.2013 the car of deceased Nabi Mohammad was kept by Rakesh and Suraj with them while Irfan returned to his Santro car, searched the lost key of his vehicle and during this he also took help from the lady residing FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 56 of 72 nearby to search the key with her mobile phone. After sometime, he found the key and along with his vehicle went to his house. Next day in the morning,

Irfan took his Santro car and Rakesh and Suraj took the car of deceased Nabi Mohammad and they delivered the car of deceased Nabi Mohammad to the wife of deceased Nabi Mohammad at his residence i.e. Kuleshra, Noida. Irfan further threatened Noor Fatima not to reveal the fact that Nabi Mohammad has been murdered by him to anyone and Irfan will continue to take her financial responsibilities. During interrogation, Irfan also revealed that when Nabi Mohammad came to know the illicit relationship of Noor Fatima with Irfan, Nabi Mohammad arranged a nikahnama between Irfan and his wife Noor Fatima. During investigation, said nikahnama was seized from Noor Fatima vide seizure memo already Ex.PW6/C, bearing my signature at point C and the nikahnama documents are already Ex.PW6/E, Ex.PW6/F and Ex.PW6/G. Further, on 12.12.2013 during investigation, on the instance of accused Irfan his vehicle Santro which was used in commission of crime was seized vide seizure memo already Ex.PW9/L, bearing my signature at point C and the vehicle used by deceased Nabi Mohammad was also seized through seizure memo Ex.PW6/H, bearing my signature at point C. Further, all the three accused were produced before the Hon'ble Court and sent to JC. An application was moved for TIP of accused persons. Hon'ble Court has fixed the date of TIP on 14.12.2013. During the TIP proceedings, in presence of the Hon'ble Judicial Officer the three accused persons refused to FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 57 of 72 participate in TIP citing that they were seen by the witness during quarrel with the deceased. The main accused Irfan @ Furkan also made extra judicial confession before the Judicial Officer that he was seen by the witness during quarreling and murdering the deceased. Further, during the investigation, police remand was taken to accused Irfan @ Furkan and Rakesh for tracing the weapon of offence i.e. knife which was stated to be recovered. On the instance of accused Irfan, the weapon of offence i.e. knife (chhura) was recovered near the bushes near Shri Ram Chowk. Crime team was also called at the place of recovery. Pointing out memo and seizure memo of the knife was prepared. The pointing out memo prepared vide Ex.PW11/C, bearing my signature at point C. The sketch of the knife was prepared same is already Ex.PW11/B, bearing my signature at point C. During further investigation, PM report was obtained. PCR form was collected and exhibits of the case were sent to FSL through Road certificate for examination. The statement of witnesses were recorded. Scaled site plan was got prepared through Draftsman SI Mahesh. After completion of the investigation, charge- sheet was filed before the Hon'ble Court.

I can identify the accused and case property.

At this stage, witness has correctly identified the accused Irfan @ Furkan and accused Rakesh present in the Court. I can also identify the accused Suraj @ Sajid (accused is PO).

At this stage, MHC(M) has produced one envelope bearing parcel no. 15 and bearing case particulars and FSL result FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan

& Ors. Page no. 58 of 72 particulars and bearing Court seal. Same is opened and found containing one white kurta and pyajama/salwar which has been cut off at some places (probably by the FSL experts for examination) After seeing the same, the witness has identified the said cloth as that of accused Irfan @ Furkan. Same are already Ex.P1 (colly).

At this stage, MHC(M) has produced one envelope bearing parcel no. 17 and bearing case particulars and FSL result particulars and bearing Court seal. Same is opened and found containing one pant of black color and one shirt of black color with check of green and white. After seeing the same, witness has submitted that the said clothes are clothes of accused Rakesh. Same are already Ex.P2 (colly).

At this stage, MHC(M) has produced one envelope bearing parcel no. 16 and bearing case particulars and FSL result particulars and bearing Court seal. Same is opened and found containing one black color jeans and one red shirt with blue stripes. After seeing the same, witness has submitted that said clothes are clothes of accused Suraj @ Sajid. Same are already Ex.P3 (colly).

At this stage, MHC(M) has produced one envelope bearing parcel no. 18 and bearing case particulars and FSL result particulars and bearing Court seal. Same is opened and found containing one big knife/chhura and on its blade the word 'bergner' is imprinted. After seeing the same, the witness has submitted that the said knife was recovered at the instance of accused Irfan @ Furkan. The knife is already Ex.MO1.

At this stage, MHC(M) has FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 59 of 72 produced one envelope bearing parcel no. 1 and bearing case particulars and FSL result particulars and bearing Court seal. Same is opened and found containing packaging one brick is taken out the brick has some cement attacked to it. After seeing the same, the witness has submitted that it was the same brick which was found lying near the dead body of deceased Nabi Mohammad. The brick is already Ex.MO2.

At this stage, MHC(M) has produced 5 mobile phones in open condition, 2 mobile phones of make Nokia and 2 mobile phones of Samsung and one mobile phone of make Onida. The witness has submitted that as the matter is very old he is unable to identify which of the Nokia phone is of deceased and which Nokia phone is of accused Irfan. However, the witness has submitted that Samsung Duo phone was recovered from accused Rakesh and one phone was recovered in the personal search of accused Suraj.

At this stage, witness is permitted to check the IMEI numbers of the mobile phones produced in the Court.

At this stage, witness has opened the one Nokia mobile phone and on its inner rear side its IMEI number is mentioned as 358256040137685 and there is one SIM of Vodafone. The said IMEI number corresponds to the seizure memo of the mobile phone of Nabi Mohammad. The said phone is already Ex.P5.

At this stage, witness has opened the another Nokia mobile phone and on its inner rear side its IMEI number is mentioned as 351670053526807 and there is one SIM of Vodafone. The said IMEI number corresponds FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 60 of 72 to the seizure memo of the mobile phone of accused Irfan. The said phone is already Ex.P4. Two mobile phones were recovered from Rakesh. One of make Onida and second of make Samsung.

At this stage, MHC(M) has produced one phone of make Onida and on opening of its rear side its IMEI number are found to be 911239052171586 and 911239052171594 and is also having one Vodafone SIM and one memory card. After seeing the same, the witness has submitted that it is the same phone which was recovered from the possession of accused Rakesh. Same is already Ex.P1.

At this stage, MHC(M) has produced one phone of make Samsung Duo of black color and on opening of its rear side its IMEI number are found to be 353877052861048 and 353878052861046 and is also having two Idea SIMs. After seeing the same, the witness has submitted that it is the same phone which was recovered from the possession of accused Rakesh. Same is already Ex.P2.

The IO has submitted that the remaining phone is regarding the personal search of Suraj but same is not much relevant for this case.

During investigation on 12.12.2013 the accused persons led the investigation team and pointed out the place where the deceased was stopped and initial quarrel took place. Pointing out memo regarding the same is Ex.PW9/K1, bearing my signature at point C. Further, all the three accused also pointed out the scene of crime and pointing out memo was prepared at their instance. Same is FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 61 of 72 already Ex.PW9/K, bearing my signature at point C. During investigation, on 17.12.2013, site plan of recovery of weapon of offence was prepared by me. Same is now Ex.PW30/P2, bearing my signature at point A. XXX Sh. Jitender Tyagi, Ld. Counsel for accused Rakesh and Irfan @ Furkan.

Before myself joining the investigation, SI Narender had informed the crime team and had verified that the call was correct. I do not remember whether I enquired about the PCR caller and made any enquiry from him. It is wrong to suggest that I did not make enquiry from the PCR caller as I wanted to manipulate the investigation. There was no residential premises till about 500 meters from the spot where body was found. SI Narender could not ascertain the identity of the dead body and same were ascertained during my investigation. I do not remember in whose name the phone number 9899225156 and 8860938347 were registered/subscribed.

At this stage, at the request of Ld. Defence counsel the witness is asked to go through the file and after seeing the file, witness has deposed that as per the CAF of 9899225156, it was subscribed in the name of Gulrukhsar, R/o F-11, Abul Fazal Enclave-2, Okhla, New Delhi and as per the CAF of 8860315786 it was subscribed in the name of Noor Fatima w/o Nabi Mohammad, R/o Village Haldoni, PS Phuleshra, Greater Noida. I did not examine Gulrukhsar to verify that whether the said phone number was being used by accused Irfan. Vol. The phone was recovered from the possession of accused Irfan. It is wrong to suggest that even phone was not recovered from the possession of FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 62 of 72 Irfan and for said

reason I did not examine Gulrukhsar. I did not record statement of Noor Fatima that Nabi Mohammad was the user of said phone number. I did not verify whether accused Irfan had bought the mobile number from Gulrukhsar or stolen from him or there was other mode of acquiring the mobile number of Gulrukhsar. It is wrong to suggest that I did not verify the same as no such mobile phone was recovered from or used by accused Irfan. It is wrong to suggest that I have deliberately not examined Gulrukhsar in order to conceal material facts during investigation. It is wrong to suggest that accused Irfan was neither having any mobile phone nor he made phone call to deceased.

I had collected only the relevant piece of brick from the spot. Opinion was not taken from the doctor conducting the autopsy regarding the brick being the weapon of offence. Vol. Opinion was taken from FSL. It is correct that I had lifted the blood from the spot where the body was found. It is correct that no videography was done during any point of investigation. There were no eyewitness regarding the spot from where the dead body was recovered. Vol. There were eyewitnesses regarding the spot where there was initial quarrel. It is wrong to suggest that I had manufactured the statement of alleged eyewitness Jaswanti regarding the quarrel whereas she has not given any statement to me. It is wrong to suggest that I manufactured her statement so that accused are not discharged from the case. It is wrong to suggest that besides the alleged statement of Jaswanti and disclosure of accused there is no evidence against accused.

FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 63 of 72 Vol. There is electronic evidence also against the accused and there is judicial confession of accused also during the TIP proceedings. It is wrong to suggest that said statement was given by the accused under my threat as I have threatened the accused person that he shall not make such statement then he will face dire consequences. It is wrong to suggest that I had called many persons from the locality and they were shown the accused persons in the police station and for the said reason the accused refused to participate in the TIP proceedings. It is correct that I have never checked that accused Irfan had washed off his blood stained clothes. It is wrong to suggest that the alleged clothes was not the clothes of accused Irfan and I had implanted the blood recovered from the spot on the said clothes for creating evidence against accused Irfan. It is correct that besides the alleged statement of Noor Fatima that accused persons to deliver the car and mobile of deceased to her, there is no independent evidence like statement of any neighbor or any CCTV footage regarding the said fact. It is wrong to suggest that Noor Fatima never gave such statement and I manufactured such statements of hers. It is correct that no complaint was given by Noor Fatima mentioning the accused had come to deliver the car and mobile phone of deceased and she has suspicion on them. It is wrong to suggest that the car of Nabi Mohammad along with its key was found near the spot of recovery of dead body and I had created the story of delivery of car to create evidence against accused. It is wrong to suggest that during investigation Irfan @ Furkan joined the initial investigation regarding the FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 64 of 72 ascertainment of the identity of the dead body and never identified the photographs and bank slip details and never stated that the photos were of Nabi Mohammad and Noor Fatima. I do not recall as to who was the registered owner of the car of Nabi Mohammad. It is wrong to suggest that I traced Noor Fatima to the registration details of the car of Nabi Mohammad which was found near the dead body and through her the dead body was identified and not through accused Irfan @

Furkan as alleged in my examination-in-chief. It is wrong to suggest that I have mentioned a false motive of Irfan i.e. his illicit relation with the wife of deceased and consequent blackmailing of Irfan by deceased \ as I have also mentioned that deceased got nikah of his wife with the accused which is a contradictory fact in regard to the alleged motive shown by me in the prosecution story. It is correct that no public witness was joined during the recovery of the alleged chhura at the instance of accused Irfan. There was one jhuggi and one temple near the spot of recovery of chhura. The clothes of accused were recovered after about 48 hours of the offence. It is correct that there is no independent witness regarding the recovery of the clothes. It is wrong to suggest that the said clothes were not recovered and were planted. It is wrong to suggest that the alleged phones have been planted on the accused in the police station and were not recovered from them.

It is wrong to suggest that neither accused Irfan nor Rakesh had any mobile conversation with the deceased on the date of alleged incident nor they had called him nor they have met the deceased Nabi FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 65 of 72 Mohammad on the date of alleged incident. It is wrong to suggest that the chhura and clothes have been planted on accused in the police station to solve a blind case. It is wrong to suggest that actual culprits could not be caught and the accused were implicated to solve the case or that I have not investigated the case fairly. It is wrong to suggest that I am deposing falsely.

Thereafter, PW - 30 was recalled u/s 348 BNSS / 311 CrPC for further examination vide order dated 16.10.2025.

At this stage MHC(M) has produced the case property i.e. one black leather purse which is found containing 17 different visiting cards, 01 pink colour bank counterfoil of Jamia Cooperative Bank Ltd. having account no. 2953 dated 09.07.2013 showing deposit of Rs. 40,000/- in the said account and having mention of 39110-02768 on the back side of the bank slip, 01 DMRC Metro Card, 02 RC i.e. one of Maruti 800 and other of DL2CR5093, 04 small paper slips having mention of mobile numbers on it, 06 photographs i.e. two of man, 04 of woman, cash of Rs. 700/- and 01 Rs. 20/- torn note, half torn note of Rs. 10/-, coins of 20 paisa and 5 paisa, cash of Rs. 730/- recovered from the front pocket of deceased's shirt. After seeing the same witness submits that the said purse was recovered from the dead body of the deceased from the spot. The case property i.e. said purse along with all articles is Ex.PW30/P3. XXXXX by Sh. Gaurav Bidhuri, Ld. Counsel for both accused Rakesh and Irfan It is wrong to suggest that the said purse was not produced at earlier occasion as the same was not in the custody of MHC(M).

FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 66 of 72 It is wrong to suggest that the said purse is planted today for the purpose of getting evidence against the accused. It is wrong to suggest that I am deposing falsely."

50. PW - 31 SI Shailesh Kumar/ police official who re-arrested the accused Irfan @ Furkan after he declaration as proclaimed offender.

51. PW - 32 SI Naveen / IO of the PO charge-sheet.

Discussion On Merits:

52. Having considered the relevant law and the settled principal with respect to the offences with which the accused persons have been charged with, I shall proceed with examining the evidence on record.

53. With respect to u/s 174A (II) IPC qua the accused Irfan @ Furkan, the process u/s 82 CrPC was not got published in the newspaper as per the guidelines of Hon'ble Delhi High Court in Sunil Tyagi Vs. Govt. of NCT of Delhi and Anr in CRL.M.C. 5328/2013 and CRL.M.C. 4438/2013, date of decision 28 th June, 2021. In these circumstances, in view of the non-compliance of the FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 67 of 72 mandatory directions of the said judgments, accused Irfan @ Furkan is acquitted for offence u/s 174A Part II IPC.

54. With respect to offence 302/201/34 IPC, the case of prosecution is based on circumstantial evidence. Victim Nabi Mohammad was a resident of Village - Kulesra, NODIA, UP. It is case of the prosecution that accused Irfan had called the victim on his mobile phone asking him to come to Delhi. It is further stated that some altercation took place between the victim and the accused persons in the field where the dead body was found. The presence of the accused persons and the victim at the relevant spot is stated to have been witnessed by PW2 Sh. Nathu Lal and PW3 Smt. Jaswanti who are residents of a Jhuggi which is 500 meters away from the spot where the dead body was found. Another witness i.e. PW7 Mohd. Ishtiyar i.e. a juice seller, who happened to be passing-by from the said road on his motorcycle also deposed that he had seen the accused searching for something in the field near the Shiv Mandir and he helped them look for the key but it could not be found.

55. As far as PW-2 and PW-3 are concerned, both of them did not depose anything about presence fo PW7 Mohd. Ishtiyar having arrived at the spot at any point of time. PW2 and PW3 further FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 68 of 72 failed to identify any of the accused in the Court. Thus, the testimony of PW2 and PW3 does not help the prosecution in establishing the presence of the accused at the relevant spot at that time. Whereas PW2 and PW3 had deposed about presence of some person and quarrel between them. From the testimonies of PW2 and PW3, it is evident that there was more than one person at the spot as quarrel cannot occur unless there are at least two persons. Whereas PW7 Mohd. Ishtiyar only deposed about having seen Irfan @ Furkan and not having seen victim or any other co-accused at the spot. He could not even tell as to which key accused Mohd. Irfan was looking for. In these circumstances, the possibility that Mohd. Ishtiyar is a planted witness cannot be ruled out.

56. The case of the prosecution was that accused had called the victim to Delhi and on the basis of call record, they had searched for the accused. The alleged mobile phone of the victim was recovered from the possession of his wife on 12.12.2013. As per the testimony of PW9 SI Narender, they had been searching for "suspect" Irfan on 11.12.2013. If the mobile phone of the victim itself was recovered on 12.12.2013 and the mobile phone of the accused was recovered subsequent to his arrest, then on what basis did accused Irfan became a "suspect" on 11.12.2013 has not come FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 69 of 72 in the testimony of any

witness. This is another major lacuna in the case of prosecution and has remained unexplained.

57. Further, as per the location records of the mobile phone number ending with 347 (phone registered in the name of Noor Fatima, wife of victim, phone alleged to have been used by victim) and the mobile phone number ending with 156 (phone registered in the name of one Gul Ruksar, phone alleged to have been used by accused Irfan) reveals that both the phones were at the same location at Janta Flats, Sarita Vihar at 09:42 PM on 09.12.2013. The first call between these two numbers was made at 09:52 PM on 09.12.2013 from the number allegedly used by the victim to the number allegedly used by the accused and not vice-versa as claimed by the prosecution. Since both the phones were at the same location at the time of the call, the story of the prosecution that accused had called the victim from NOIDA to Delhi stands demolished.

58. The mobile phone of the accused was not recovered from the dead body or from the spot of incident. The testimony of PW6 Noor Fatima cannot be read as her testimony was only partly recorded and she was not cross-examined as she became untraceable and was consequently dropped from list of witnesses.

FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 70 of 72 The mobile phone alleged to have been used by victim was recovered from the possession of his wife Noor Fatima 2-3 days after the alleged incident. There is nothing on record to show that the alleged mobile phone was in the actual usage of the victim. Per contra, the phone was registered in the name of Noor Fatima and not the victim. The other mobile phone on which call was stated to have made was allegedly recovered from accused Irfan. There is affidavit Ex.PW6/E of Noor Fatima on record which shows that she was married to accused Irfan on 11.03.2013. There is photograph Ex.PW6/D of Noor Fatima and Irfan together. Since, Noor Fatima and Irfan were allegedly married. Then, conversation between them on mobile phone does not appear to be unnatural.

59. FSL result dated 15.12.2015, Ex.PW28/P1 has been carefully perused. The alleged exhibits were examined very carefully, however, none of the exhibit were labeled as belonging to the deceased or the accused. Further, no DNA profiling of exhibits was done. There is nothing in FSL result to show as to whose blood was detected on whose exhibits. This is yet another major loophole in the case of the prosecution.

60. It is cardinal principle of criminal jurisprudence that prosecution has to prove its case beyond reasonable doubt and if FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 71 of 72 any doubt has been created then benefit of it should be given to the accused persons. The prosecution has failed to prove the charge on the standard of proof beyond reasonable doubt. Accordingly, accused Irfan @ Furkan S/o Sh. Chhote Khan is acquitted for offences U/s 201/302/34/174A Part II IPC and accused Rakesh S/o Sh. Kunwar Pal is acquitted for offence U/s 201/302/34 IPC.

Personal Search items of accused persons, if not already released, be released to him as per rules.

The case be revived as and when the accused PO Suraj @ Sajid is arrested. Digitally signed by Shivani (Announced in the Open Court Shivani chauhan Date:

> on 4th February, 2026) chauhan 2026.02.04 16:44:47 +0530 (SHIVANI CHAUHAN) Additional Sessions Judge, (FTC)-01, South-East District, Saket Courts, New Delhi/04.02.2026 FIR No. 461/2013, PS Jaitpur State v. Irfan @ Furkan & Ors. Page no. 72 of 72